



INDIAN LAW & DEALMAKING · 11 AUGUST 2026

Five moves shaping the board now.

- › Trustee standing affirmed
- › Summary limitation dismissal
- › Dual-seat jurisdiction clarity
- › SFIO disgorgement rejected
- › Massive PMLA prosecution

SWIPE →



Ozone Projects Admitted To CIRP

On 10 August 2026, NCLT Chennai admitted Ozone Projects Private Limited into CIRP on a Section 7 petition filed by IDBI Trusteeship Services Limited for a default of about ₹212.31 crore. The Tribunal rejected the corporate debtor's Section 65 malicious initiation application and ruled that a pending company appeal does not bar Section 7 proceedings.

THE READ

Debenture trustees retain robust standing to trigger insolvency despite dilatory corporate appeals. Creditors should leverage this precedent to aggressively press Section 7 applications without fear of procedural stalling.



IBC · NCLAT NEW DELHI

02 / 05

Personal Insolvency Plea Dismissed

On 10 August 2026, NCLAT New Delhi held that an ex facie time-barred personal guarantor insolvency application under Section 94 of the IBC can be summarily rejected at the threshold. The appellate tribunal clarified that tribunals are not mandated to appoint a Resolution Professional before dismissing hopelessly time-barred petitions.

THE READ

Guarantors gain an efficient shield against stale claims at the admission stage. Counsel must spotlight limitation defects early to secure swift threshold dismissals without incurring unnecessary RP costs.



Dual Seats Open Jurisdiction Doors

On 16 July 2026, the Madhya Pradesh High Court ruled in *Idieal Multi Media Network Private Limited v. CMYK Printech Limited* that when an arbitration clause designates two alternative places without a final choice, both operate as juridical seats. Consequently, High Courts exercising jurisdiction over either location can entertain Section 11 appointment applications.

THE READ

Ambiguous multi-city arbitration clauses now double your jurisdictional optionality for court assistance. Drafting teams must enforce single-seat clarity to eliminate forum shopping risks.



SFIO Disgorgement Plea Dismissed

On 9 August 2026, NCLT Mumbai dismissed an SFIO petition seeking disgorgement of ₹100.50 crore against Suneeta Reddy and others regarding an Aircel merger transaction. The Tribunal held that the termination payment under an IP Call Option Agreement was a lawful shareholder contract rather than a fraudulent transaction within company affairs under Section 212(14A) of the Companies Act.

THE READ

Regulatory overreach into legitimate shareholder commercial arrangements faces strict judicial boundaries. Defending parties can successfully fend off SFIO disgorgement by proving transactions sit outside core company management affairs.



ENFORCEMENT · SPECIAL PMLA COURTS NEW DELHI

05 / 05

Reliance Group Chargesheets Filed

On 8 August 2026, the Enforcement Directorate filed a prosecution complaint against Reliance Infrastructure at Dwarka Court and a supplementary chargesheet against RCOM, RTL, and Reliance Infratel at Rouse Avenue Court. The agency alleged massive fund layering through shell entities, quantifying proceeds of crime at ₹40,185 crore alongside asset attachments totaling over ₹8,200 crore.

THE READ

Aggressive PMLA prosecutions targeting legacy group entities and former executives signal unrelenting enforcement intensity. Defense strategies must immediately focus on challenging the foundational nexus between alleged layering and actual proceeds of crime.



THE THROUGH-LINE

This week showcases high-stakes corporate litigation where judicial forums firmly delineate procedural boundaries across insolvency, arbitration, and enforcement domains. Tribunals and courts have demonstrated a clear appetite to fast-track valid creditor remedies while aggressively curbing regulatory overreach in commercial transactions. Legal strategists must leverage these doctrinal guardrails to secure threshold dismissals and safeguard corporate autonomy against expansive state action.





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